

Brazil Export Entity — Structuring Brief

A bot-enabled agriculture export bridge from Northern Brazil — TrueSight DAO / Agroverse

Prepared for	Paloma — FounderHaus (to brief introduced legal counsel)
Counsel sought	(1) Próspera-jurisdiction incorporation counsel; (2) Brazilian foreign-trade / customs & tax counsel
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This document gives introduced counsel everything needed for a first working session: who we are, the US import entity already in place, the problem with the current Brazilian export arrangement, the proposed structure, the specific legal questions we need answered, and the verified supplier base the new entity will serve.

REDACTED VERSION — prepared as a public proof-of-work artifact for the TrueSight DAO contribution ledger. The personal CPF, the per-contributor ownership cap table, the US importer's tax / registration numbers, and the internal ledger link have been removed. The complete brief is shared with counsel directly.

1 · Purpose of this brief

TrueSight DAO operates **Agroverse**, a regenerative-agriculture network. The venture we are formalising here is a **bot-enabled agricultural export bridge from Northern Brazil** — beginning in the cacao-producing regions of **Bahia and Pará** — that moves verified produce from farming cooperatives and producers to buyers abroad. We are **starting with cacao products**, where the supplier base is already operating and FDA/FSVP-compliant, and will extend the same bridge to other Northern-Brazilian agricultural commodities over time.

The first destination market — the **United States** — is already fully formalised on the import side under a Delaware company, **TrueTech Inc**, the FDA-FSVP importer of record and the US Customs importer of record. We also intend to export to **China** and **Europe**, each served by its own dedicated importer entity (jurisdictions and details **to be determined**).

The **Brazilian export side is not yet formalised in a dedicated entity**. Today, exports leave Brazil through the personal CNPJ of one of our community members (trading as “Black King”). That arrangement does not scale, concentrates Brazilian tax exposure on an individual, and cannot be operated by software agents. We want to establish a purpose-built export entity instead.

We are asking **FounderHaus (Paloma)** to introduce us to two sets of counsel and to use this brief as the shared starting context:

- **Próspera-jurisdiction incorporation counsel** — to form the holding / operating company in the Próspera ZEDE that will own and control the Brazilian export entity.
- **Brazilian foreign-trade, customs & tax counsel** — to incorporate the new Brazilian CNPJ, obtain its RADAR habilitation and Siscomex access, and structure it for tax efficiency and software-driven operation.

2 · Executive summary

We intend to incorporate a new entity in the **Próspera jurisdiction** which will, in turn, own / control a new **Brazilian company (CNPJ)** dedicated to exporting agricultural products out of Northern Brazil (Bahia and Pará), starting with cacao. The Brazilian entity will hold its own **RADAR** license and **Siscomex** access so it can file export declarations in its own name, independent of any individual's personal CNPJ. The medium-term goal is for these export operations (document preparation, declaration filing orchestration, ledger reconciliation) to be run largely by **autonomous AI agents**, with licensed human professionals (e.g. a despachante aduaneiro) in the loop where Brazilian law requires.

Crucially, the Próspera entity is **owned by the DAO's contributors** — the people on our contributor ledger, in proportion to the governance tokens (TDG) they have earned — not by a single founder (see §6).

In one line:

DAO contributors → Próspera HoldCo → Brazilian Export CNPJ (RADAR + Siscomex), Bahia & Pará → dedicated importers: US (TrueTech Inc, live), China & Europe (TBD) → Agroverse reseller network.

3 · Background — who we are

TrueSight DAO

TrueSight DAO is a values-driven, open-source organisation building social ventures and recording its operations transparently (governance, treasury, and supply-chain data are published publicly). Agroverse is its flagship program.

Agroverse

Agroverse is a regenerative-agriculture network: it connects Northern-Brazilian (Amazonian and Bahian) farmers and cooperatives directly to conscious buyers, removing the chain of intermediaries that historically captured most of the value. The network handles farm onboarding, FDA/FSVP certification, community warehousing in Brazil and abroad, and last-mile distribution to resellers. Public reference: truesight.me/agroverse.

The demand side is already live. A network of **30+ retail and venue partners** — apothecaries, cafés, wellness and ceremonial venues, and community hubs — already carries Agroverse cacao. The current, public partner list is at **agroverse.shop/partners**. This existing distribution network is exactly what the export bridge is built to supply — at greater volume, across more product lines, and into more destination markets.

TrueTech Inc — the existing US import entity

TrueTech Inc is the Delaware company that already anchors the US side. It is the **FSVP importer of record** and the **US Customs importer of record** for every supplier in the network. It will remain the US import partner under the new structure; the new Brazilian entity sits on the *export* side, upstream of it.

Legal name	TRUETECH INC
Form	C-Corporation, Delaware (IRS Form 1120 filer)
EIN (US tax ID)	[redacted]
US Customs importer-of-record no.	[redacted] — CBP Form 5106 on file (no bond)
FDA Food Facility Registration	[redacted] (status: VALID, exp. 2026-12-31)
D-U-N-S	[redacted]
Registered / mailing address	8 The Green, Ste A, Dover, DE 19901, USA
Officer	Zhiwen Teh (Gary Teh), President

4 · Current state & the problem to solve

Brazilian exports currently flow through **an individual community member's personal CNPJ** (trade name “Black King”) — an *Empresário Individual* (micro-enterprise, Simples Nacional) based in Ilhéus, Bahia. That individual buys finished cacao from farms and the goods are exported under his personal registration. (Names and registration numbers are in the complete brief shared with counsel.)

Why this must change:

- **Personal tax liability.** Routing a growing, DAO-scale export flow through an individual member's individual CNPJ accumulates Brazilian tax exposure on that person — disproportionate to their role and unsustainable as volume grows.
- **Not automatable.** We intend to operate exports with autonomous AI agents. Building that automation on an individual's personal registration is inappropriate and risky; it needs a dedicated corporate vehicle.
- **Single point of failure / governance.** A community-wide operation should not depend on one person's personal legal standing, banking, and RADAR limits.
- **Scale & financing.** A Simples Nacional micro-enterprise has limited RADAR capacity and is a poor base for the export volumes and pre-purchase financing the network is moving toward.

5 · Proposed structure

- **Tier 1 — Próspera HoldCo.** A new entity incorporated in the Próspera jurisdiction (introduced by FounderHaus) acts as the holding / operating company and owner of the Brazilian export entity.
- **Tier 2 — Brazilian Export CNPJ.** A new Brazilian company, owned/controlled by the Próspera HoldCo, incorporated to export Northern-Brazilian agricultural products (Bahia & Pará), starting with cacao. It obtains **RADAR** habilitation from Receita Federal and operates in **Portal Único Siscomex** (filing the DU-E export declaration) in its own name.
- **Tier 3 — destination-market importers (one per market).** Each export market is served by its own dedicated importer of record: **United States — TrueTech Inc** (already established; FDA/FSVP + CBP); **China** and **Europe** — dedicated importer entities to be established (jurisdictions / details TBD). Importers feed the Agroverse reseller network (agroverse.shop/partners).
- **Operating model.** Autonomous AI agents prepare documents, reconcile the ledger, and orchestrate filings; a licensed Brazilian customs broker (despachante aduaneiro) and accountants remain in the loop as required by law.

We are deliberately leaving the final legal form to counsel. The constraints that matter to us are: (a) relieve the individual community member's personal CNPJ; (b) be cleanly ownable by the Próspera HoldCo; (c) be tax-efficient for recurring exports; and (d) be operable by software agents with minimal manual intervention.

6 · Ownership — mapped to the DAO contributor ledger

The Próspera HoldCo is **not** owned by a single founder. Consistent with TrueSight DAO's contribution-based ethos, its beneficial ownership is intended to map to the DAO's existing, transparent contributor ledger: the individuals recorded in the Main Ledger's “**Contributors contact information**” tab,

each owning in proportion to the governance tokens (**TDG**) they have earned, as recorded in the “**Contributors voting weight**” tab.

- **Contribution-based & dynamic.** Ownership is earned through verified contributions of time and out-of-pocket capital, and it updates as contributors earn TDG. The live ledger — not a fixed founder cap table — is the canonical source of truth.
- **Two lenses, both already tracked.** The ledger records both *economic ownership* (share of total TDG controlled) and *quadratic voting power* (governance influence, deliberately de-concentrated so no single holder dominates votes). Counsel should expect to map both onto the entity’s ownership and governance documents.

Snapshot — 26 May 2026

As of this snapshot, **316 contributors** hold a non-zero TDG balance across ~2,263,640 TDG issued. Representative top holders below; the full, continuously-updated list lives in the ledger:

[Per-contributor ownership cap table redacted in this public version. In aggregate: the lead contributor controls ~40.8% of issued TDG; the remaining ~59% is spread across 315 further contributors in a long tail, and quadratic voting materially flattens governance influence. The full per-contributor breakdown is in the complete brief shared with counsel.]

Live source of truth — Main Ledger & Operations, tabs “Contributors contact information” & “Contributors voting weight”: (internal DAO ledger — shared with counsel)

Translating this fluid, tokenised, ~316-holder base into a legally recognised ownership / membership structure for the Próspera entity — and how that flows down to the Brazilian subsidiary — is a core question for counsel (see §7).

7 · What we need from counsel

For Brazilian foreign-trade / customs & tax counsel

- What is the most suitable Brazilian legal form (e.g. *Sociedade Limitada* — Ltda) for an export-only entity that will be **foreign-owned** (by the Próspera HoldCo)?
- Foreign-ownership mechanics: requirement for a **resident legal representative**, CPF/CNPJ registration of foreign quotaholders, and **RDE / foreign-capital registration** with the Banco Central.
- **RADAR habilitation**: which modality (Expressa / Limitada / Ilimitada), documentation, capacity proof, and realistic timeline for a newly formed entity.
- **Siscomex / Portal Único** access and the **DU-E** export-declaration workflow — and to what extent it can be filed via API / programmatically vs. requiring a despachante aduaneiro.
- Tax regime selection (Simples vs. Lucro Presumido vs. Lucro Real) for a low-margin, high-frequency export operation, and treatment of export-related tax exemptions/credits (ICMS, PIS/COFINS, IPI on exports).
- Transfer-pricing / intercompany pricing posture between the Brazilian entity, the Próspera HoldCo, and TrueTech Inc (US).
- Clean migration path from the current Black King arrangement (an individual’s personal CNPJ) without disrupting existing FDA/FSVP supplier registrations.

- Brazilian-side implications of exporting to **multiple destination markets** (US, China, EU) and **multiple agricultural product lines** beyond cacao — NCM classification, MAPA / phytosanitary certification, and per-destination export certificates.

For Próspera-jurisdiction incorporation counsel

- Appropriate Próspera entity type to act as a holding company owning a Brazilian operating subsidiary.
- Banking, substance, and reporting requirements; how a Próspera entity is recognised as a foreign quotaholder in Brazil.
- Interaction with TrueTech Inc (US) — whether the Próspera HoldCo should also sit above TrueTech or remain Brazil-side only.
- Suitability of the structure for DAO / tokenised governance and for AI-agent-operated subsidiaries.

On ownership & securities (for both counsel)

- How to translate a ~316-holder, continuously-updating, TDG-weighted contributor base (see §6) into recognised ownership of the Próspera entity — e.g. direct membership interests to a defined snapshot, a foundation / SPV that holds for the DAO, or a tokenised cap table.
- Securities-law treatment of TDG-as-ownership across the Próspera jurisdiction, Brazil, and the US.
- Snapshot / cut-off mechanics for an ownership base that changes as contributions accrue; treatment of pseudonymous holders and any KYC needed for owners of record.

8 · The Brazilian supply base the entity will serve

These are the verified suppliers already onboarded under TrueTech Inc's FSVP program. All Brazilian suppliers below hold active FDA Food Facility Registrations and have written assurances on file. Full records (CNPJ certificates, D&B, FDA registrations, written assurances, site-visit reports) live in the public repository github.com/TrueSightDAO/fda_fsvp; a machine-readable `entity.json` now sits in each supplier folder.

Trade name	Legal name	CNPJ	Location	Products	FDA FFR
Coopercabruca	Cooperativa dos Cacaucultores do Sul da Bahia	[on file]	Itabuna, BA	cacao nibs, mass, molasses	[on file]
Black King*	Individual proprietor (Empresário Individual)	[on file]	Ilhéus, BA	nibs, mass, molasses, tea, husk, ceremonial cacao	[on file]
CEPOTX	Coop. Central de Produção Orgânica da Transamazônica e Xingu	[on file]	Altamira, PA	organic cacao almonds	[on file]
Mu Gelato	Mu Gelato Sorvetes Artesanais Ltda	[on file]	Florianópolis, SC	chocolate-coated coffee bean candy	[on file]
Hau Cacao	Hau Cacao Superalimentos Ltda	[on file]	Porto Alegre, RS	cacao mass	[on file]

* "Black King" is an individual community member's personal CNPJ — i.e. it is both a verified supplier and the individual export vehicle this project replaces.

Cacao is the first commodity through the bridge because the supplier base and FDA/FSVP compliance are already in place. The same Brazilian export entity is designed to carry additional Northern-Brazilian agricultural products (Bahia & Pará) as they are onboarded, and to ship them to the US, China, and Europe.

Outside Brazil (for context): the network also sources cacao mass from **Koala V & S E.I.R.L.** (trade name Koala Detalhes) in Jaén, Cajamarca, **Peru** (FDA FFR [redacted]). This is noted only to show the network already spans more than one origin country; it is outside the scope of the Brazilian export CNPJ.

9 · Key person

Name	Gary Teh — legal/registered name Zhiwen Teh
Role	TrueSight DAO contributor; President of TrueTech Inc (US); proposed responsible principal for the new structure
Brazilian CPF	[redacted]
Email	garyjob@truesight.me / garyjob@agroverse.shop

Gary already holds a Brazilian CPF and is the natural responsible principal on the Brazilian side, whether as a named officer of the new CNPJ or as the representative of the Próspera HoldCo — counsel to advise on the cleanest configuration.

10 · Data room & compliance status

- **FSVP / FDA compliance:** all suppliers above carry VALID FDA Food Facility Registrations (exp. 2026-12-31) and written assurances under TrueTech Inc's FSVP small-importer program.
- **Public document repository:** github.com/TrueSightDAO/fda_fsvp — supplier folders hold CNPJ certificates, D&B records, FDA registrations, written assurances, supplier-evaluation declarations, and site-visit reports.
- **Machine-readable profiles:** each supplier folder now contains `entity.json` and the US entity is in `truetech_inc.entity.json` (identifiers, addresses, products, FSVP status, document index) for fast future review by counsel or AI agents. FDA PINs and personal CPF are deliberately excluded from those public files.
- **Transparency surfaces:** truesight.me (DAO), truesight.me/agroverse (program).

11 · Glossary (cross-jurisdiction)

CNPJ	Cadastro Nacional da Pessoa Jurídica — Brazilian company tax/registration ID.
CPF	Cadastro de Pessoas Físicas — Brazilian individual tax ID.
RADAR	Receita Federal license that authorises a Brazilian entity to operate in foreign trade (import/export) via Siscomex; modalities Expressa / Limitada / Ilimitada.
Siscomex / Portal Único	Brazil's Integrated Foreign Trade System; the platform for filing export declarations.
DU-E	Declaração Única de Exportação — the single export declaration filed in Portal Único Siscomex.
Despachante aduaneiro	Licensed Brazilian customs broker who files customs declarations.
FSVP	FDA Foreign Supplier Verification Program — US importer obligation to verify foreign food suppliers.
FDA FFR	FDA Food Facility Registration number.
D-U-N-S	Dun & Bradstreet business identifier (used as FDA UFI).
EIN	US Employer Identification Number (federal tax ID).
Próspera (ZEDE)	Special economic / governance jurisdiction; the proposed home of the holding company.
TDG	TrueSight DAO governance token — earned through verified contributions; defines economic ownership and (quadratically) voting weight.
Quadratic voting	Voting scheme where influence scales with the square root of tokens held, deliberately de-concentrating governance away from the largest holders.